

22SMCV01309 22SMCV01309

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-08-13

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C08%2F13%2F2026

Source SHA-256: 26d4f0994dbcc2a5a55b2dc183bc26e813e94944546a013ecde4f7b9c56ff9

Case Number: 22SMCV01309 Hearing Date: August 13, 2026 Dept: N

TENTATIVE RULING

Defendant Jason Varughese's Motion for a New Trial is DENIED.

Defendant Jason Varughese's Motion to Set Aside and Vacate Judgment and to Enter a Different Judgment is DENIED.

Defendant Jason Varughese to give notice.

REASONING

Request for Judicial Notice

Defendant Jason Varughese ("Defendant") requests judicial notice of seven volumes of reporter's transcripts from the trial in this action, exhibits admitted at trial, the special verdict, the judgment, and minute orders. Defendant's request is GRANTED pursuant to Evidence Code section 452, subdivision (d). Defendant also requests judicial notice of exhibits not admitted at trial. There is no basis to take judicial notice of such evidence; thus, Defendant's request is DENIED in that regard.

Plaintiff Grace Kang ("Plaintiff") requests judicial notice of the verdict in four actions in California trial courts. Plaintiff's request is GRANTED pursuant to Evidence Code section 452, subdivision (d); however, the Court notes that such verdicts are not binding on this Court in any way and simply show the conclusion reached by different juries.

Analysis

This action went to trial on May 4, 2026 until May 12, 2026. On May 11, 2026, the jury returned a Special Verdict finding in Plaintiff's favor as to her first cause of action for violation of Penal Code section 11172, subdivision (a), and second cause of action for intentional infliction of emotional distress, with \$1,500,000 in damages as to the first cause of action and \$2,000,000 as to the second cause of action. On May 12, 2026, the jury returned a Punitive Damages Verdict finding in Plaintiff's favor as to her second cause of action only, awarding punitive damages of \$1,000,000, for a total award of \$4,500,000. On June 16, 2026, Defendant filed a notice of intention to move for new trial and notice of intention to move to set aside and vacate judgment and to enter a different judgment. The supporting memoranda of points and authorities were timely filed 10 days thereafter.

Code of Civil Procedure section 657 sets forth the grounds upon which a verdict may be vacated, in whole or in part, and a new or further trial granted on all or part of the issues. "The determination of a motion for a new trial rests so completely within the court's discretion that its action will not be disturbed unless a manifest and unmistakable abuse of discretion clearly appears." (*Jiminez v. Sears, Roebuck & Co.* (1971) 4 Cal.3d 379, 387.) Similarly, Code of Civil Procedure section 663 states that an aggrieved party may move to set aside and vacate a judgment based upon a decision by the Court or the special verdict of a jury when the judgment materially affects "the substantial rights of the party" and thereby entitles "the party to a different judgment" because (1) there was an "[i]ncorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts" or (2) the "judgment or decree [is] not consistent with or not supported by the special verdict."

In his motion for a new trial, Defendant argues that the Court improperly excluded evidence of his good faith state of mind while admitting prejudicial evidence over objection, the evidence was insufficient as to the culpable mental state required by Penal Code section 11172 and the element of severe emotional distress, the damages are excessive as a matter of law because the compensatory damages award duplicates emotional distress damages across both causes of action while the punitive damages award rests on no evidence of ability to pay, the Court improperly ordered Defendant to retain counsel to depose Plaintiff and appear at a settlement conference, the Court improperly excluded Defendant's treating clinical psychologist, and certain documentary evidence was improperly excluded. In his motion to set aside and vacate the judgment, Defendant argues again that the judgment awards duplicative emotional distress damages, the conduct does not satisfy Penal Code section 11172, the punitive damages award was not based on Defendant's ability to pay, and the Court improperly included and excluded certain evidence.

Put simply, Plaintiff is seeking a second bite at the proverbial apple in these motions, making the same arguments already considered and rejected by the Court in prior rulings and making new arguments he failed to assert at trial. These arguments do not properly or accurately reflect the court record. As to the Court's evidentiary rulings, the Court excluded the therapist because Defendant did not identify him as an expert, and his proposed testimony was impermissible expert testimony and hearsay; the Court excluded the family law attorney's testimony because she was also not identified as a potential witness during discovery; Defendant did not produce certain evidence during discovery; Defendant failed to object to certain testimony; the Court limited the audio recording evidence to avoid prejudice to Defendant; and Defendant failed to properly challenge the admission of certain reports. As to the Penal Code section 11172 claim, the record contained substantial evidence of Defendant's culpable state of mind, which the jury credited, and as to the severe emotional distress finding, the record contained substantial evidence of Plaintiff's emotional distress, such as describing the investigation as "very traumatic" and that she lives in constant fear. As to the damages, the jury was properly instructed, Defendant provides no evidence that the jury did not properly follow the instructions, the jury awarded different amounts under different categories, the harm differed as to each claim, the punitive damages award tends to indicate that the jury did not conflate the two causes of action, and Defendant did not object to the special verdict form. As to punitive damages, the evidence supported a jury finding that Defendant acted with malice, oppression, or fraud, and Defendant failed to comply with a notice to provide financial information, thereby warranting an adverse inference instruction as to his financial state. Finally, as to pretrial proceedings, Defendant provides no cognizable basis to find that any proceedings was improper; specifically, as to the order to obtain counsel, this was based on Defendant's prior conduct in misusing discovery. Moreover, Defendant cannot demonstrate that any of the purported errors would have made any difference in the jury's verdict. Accordingly, Defendant Jason Varughese's Motion for a New Trial is DENIED, and Defendant Jason Varughese's Motion to Set Aside and Vacate Judgment and to Enter a Different Judgment is DENIED.